



LEARNER COPY

VICTORIA POLICE

Police v Amaran

PROSECUTOR EYES ONLY

Graduate Certificate in Police Prosecution

Bail Moot Brief of Evidence

This brief of evidence is to be used for training purposes only.

For further information please contact:
Research and Training Unit
Level 6, 456 Lonsdale Street
Melbourne 3000 Ph: 8628 3600



Bail Hearing Moot

General Guidelines for Prosecutors

These guidelines are to be read in conjunction with the following documents:

- Relevant preliminary remand brief of evidence
- Relevant specific preliminary brief instructions
- POL87115 Graduate Certificate in Police Prosecution – Learner Guide

General

- The Bail hearing moot will run for 60 minutes or less
- 15 minutes is allocated for the instructor to provide feedback to the prosecutor immediately following the completion of the bail hearing moot.
- No issue is to be made with the correctness of the issuing or listing of charges (including the lack of signatures on charges).
- The learner is to be assessed according to the specific observation tool for each bail brief. An example of the observation tool is provided in the evidence portfolio to enable learners to understand the assessment requirements.
- It is expected that the learner will complete all the actions of a prosecutor in dealing with the brief, including filling in the relevant sections on the bail brief.

Preliminary Matters

- The prosecutor will have preliminary discussion with defence to discuss the bail position.
- The prosecutor will announce their appearance and advise the court of the nature of the matter listed, specifically that bail is opposed.
- The prosecutor is required to state the legislative grounds for opposition of bail (shall refuse if unacceptable risk / show compelling reason / exceptional circumstances).

Prosecution Case

- The prosecutor will lead evidence from the informant in the matter.
- If the witness is a police officer they should swear themselves in. If the witness is a civilian there is no requirement for the magistrate to swear the witness in.
- Examination in chief should address grounds for opposition of bail including (but not limited to) how the applicant came into police custody, applicable Bail Act provisions, personal circumstances of the accused, and the strength of the prosecution case. The prosecutor may tender any exhibits, if applicable, during examination in chief.
- The magistrate should deal with any objections according to the law.
- Defence will cross examine the witness.
- The prosecutor should only re-examine the witness if it is necessary.

Defence Case

- Defence will lead evidence from one civilian witness during examination in chief.
- The defence instructions should be followed.
- The magistrate should deal with any objections according to the law.
- Defence should only re-examine the witness if it is necessary.

After close of Defence Case

- Defence counsel will make submissions on behalf of their client first.
- The prosecutor should then make submissions in relation to the application that addresses applicable law and any issues raised in the defence submission.

Assessment

- All moots are to be video/audio recorded.
- Requests for review are to be made in line with the procedure stipulated in the learner guide.

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

PERSONAL DETAILS OF THE ACCUSED

Occupation: Retail Assistant Marital Status: ☐ Married ☐ Separated ☐ De facto ☒ Single
 Dependants: No.: 0 Ages:
 Financial / Home Environment Details: The applicant resides by herself, having recently separated from the complainant. The applicant works part time as a retail assistant at Dan Murphy's.

IF BAIL IS OPPOSED

Is the accused of Aboriginal and/or Torres Strait Islander descent? ☐ Aboriginal ☐ Torres Strait Islander
☐ Both ☒ Neither ☐ Not stated/unknown
 Is the accused a child [Under 18 years]? ☐ Yes ☒ No
 Is the accused a vulnerable adult? [s.3AAAA] ☐ Yes ☒ No
 If Yes, is the matter to be heard by a Bail Justice? ☐ Yes ☐ No ☒ N/A
 If the accused is a child and does not have legal representation, has Youth Justice (BH) or YJBAS (AH) been notified? ☐ Yes ☐ No ☒ N/A
 If the accused is not of Aboriginal and/or Torres Strait Islander descent, a child or vulnerable adult, are they able to appear before the court via Audio Visual Link (AVL)? ☐ Yes ☐ No ☒ N/A
 After having had the opportunity to seek legal advice, does the accused consent to appear via AVL? ☐ Yes ☐ No ☒ N/A

PART A - CONSIDERATIONS FOR INFORMANT

[NOTE: The following information will assist the BDM in their assessment of mandatory requirements pursuant to the Bail Act 1977. Please refer to VPM - Bail and remand for further information.]

Family Violence Risks [s.5AAAA]

(1) Is there in force:-
 (a) a family violence intervention order made against the accused? OR ☒ Yes ☐ No
 (b) a family violence safety notice issued against the accused? OR ☐ Yes ☒ No
 (c) an order recognised under the National Domestic Violence Order [NDVO] Scheme made against the accused? ☐ Yes ☒ No
 Details:

Surrounding Circumstances Considerations [s.3AAA]

(2) Whether, if the accused were found guilty of the offence with which the accused is charged, it is likely
 (i) that the accused would be sentenced to a term of imprisonment; AND ☐ Yes ☐ No
 (ii) if so, that the time the accused would spend remanded in custody if bail is refused would exceed that term of imprisonment ☐ Yes ☐ No
 (3) Has the accused expressed support for [s.3AAA(m)]
 (a) the doing of a terrorist act? OR ☐ Yes ☒ No
 (b) a terrorist organisation? OR ☐ Yes ☒ No
 (c) the provision of resources to a terrorist organisation? ☐ Yes ☒ No
 Details:
 (4) Does the accused have, or have they had, an association with [s.3AAA(n)]
 (a) another person or a group that has expressed support of the kind referred to in Question 3 (a)-(c) above? OR ☐ Yes ☒ No
 (b) another person or a group that is directly or indirectly engaged in, preparing for, planning, assisting in or fostering the doing of a terrorist act? OR ☐ Yes ☒ No
 (c) a terrorist organisation? ☐ Yes ☒ No
 Details:

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

Surrounding Circumstances Considerations Continued [s.3AAA]

- (5) In regards to the **strength of evidence** against the accused [s.3AAA(b)]
- (a) has the accused made any **admissions**? ☒ Yes ☐ No
- Details: Admits attendance and consuming alcohol while there.
- (b) is there any **identification evidence**? ☒ Yes ☐ No
- Details: Recognition.
- (6) What is the **attitude or likely attitude of the alleged victim** to the accused being granted bail? [s.3AAA(j)]
- Details: Concerned for her safety and that the accused's behaviour will continue if released.
- (7) If the accused is charged with causing injury to a person, what is the **extent of the victim's injuries**? [s.8B]
- Details: N/A
- (8) Is there currently a **FVIO, FVSN or recognised DVO in force** against the accused? [s.3AAA(f)(i)(ii) (iii)] ☒ Yes ☐ No
- Details: Order protecting the complainant, with conditions not to commit family violence and not to attend the complainant's address when alcohol affected.
- (9) If the accused has been subject to previous bail conditions, what is the history of compliance with the conditions?
- Details:
- (10) Has the accused been charged with a **drug offence**? ☐ Yes ☒ No
- (a) what type of drug is involved?
- (b) what quantity is involved?
- (c) has there been any drug analysis to date? ☐ Yes ☒ No
- Details:

Aboriginal Person Considerations [s.3A(1)]

[NOTE: Specific considerations applicable to all children, including children that are Aboriginal or Torres Strait Islander, are also listed within the next section. See s.3B below.]

- (11) Is there any information available regarding issues that might arise in relation to the person's history, culture or circumstances, including the following ☐ Yes ☐ No
- (i) the impact of any experience of trauma and intergenerational trauma including abuse, neglect, loss and family violence;
- Details:
- (ii) any experience in out of home care, including foster care and residential care;
- Details:
- (iii) any experience of social or economic disadvantage, including homelessness and unstable housing;
- Details:
- (iv) any ill health the person experiences, including mental illness;
- Details:
- (v) any disability the person has, including physical disability, intellectual disability and cognitive impairment;
- Details:
- (vi) any caring responsibilities the person has, including as the sole or primary parent of an Aboriginal child; AND
- Details:
- (vii) any other relevant cultural issue or obligation;
- Details:

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

Determination of bail in relation to a Child [s.3B]

(12) Information relating to the significant person (parents, guardians, etc.) in the child's life	☐ Yes	☐ No
Details:		
(13) Information relating to the living arrangements in the community, including safety and comfort of those arrangements	☐ Yes	☐ No
Details:		
(14) Information relating to:		
(i) the child's education, training or work	☐ Yes	☐ No
Details:		
(ii) the child's involvement in the child protection system	☐ Yes	☐ No
Details:		
(iii) if the child is from a culturally and linguistically diverse background	☐ Yes	☐ No
Details:		
(15) Any issues that arise:		
(i) in relation to ill health the child experiences, including mental illness	☐ Yes	☐ No
Details:		
(ii) in relation to any disability the child has, including physical disability, intellectual disability, cognitive impairment and developmental delay	☐ Yes	☐ No
Details:		

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

Step 1 - Exceptional Circumstances Test [s.4A]

A bail decision maker must refuse bail for a person accused of a Schedule 1 or other offence unless satisfied that exceptional circumstances exist that justify the grant of bail [s.4A(1A)].

Note: Only a court can grant bail to a person accused of a:

- a. Schedule 1 offence; OR
- b. Schedule 2 offence and the accused has a terrorism record; OR
- c. Schedule 2 offence and at the time they committed it they were either on bail, on summons, at large awaiting trial or sentence, on remand, subject to a CCO or a parole order for a Schedule 1 or Schedule 2 offence.

[NOTE: Where paragraph (c) applies, a police bail decision maker can still consider bail if the accused is a child, a vulnerable adult or an Aboriginal Person.]

(16) Has the accused been charged with an offence listed within <u>Schedule 1 of the Bail Act 1977</u>? Details: FOR THE LEARNER TO DETERMINE	☐ Yes ☐ No
(17) Has the accused committed a Schedule 2 offence and the accused has a terrorism record?[s.4AA (2)] Details: FOR THE LEARNER TO DETERMINE	☐ Yes ☐ No
(18) Has the accused committed a Schedule 2 offence that is alleged to have been committed by the accused? [s.4AA(2)(c)] (a) while on bail for any Schedule 1 or Schedule 2 offence? (b) while subject to a summons to answer a charge for any Schedule 1 or Schedule 2 offence? (c) while at large awaiting trial for any Schedule 1 or Schedule 2 offence? (d) while the accused was on remand for any Schedule 1 or Schedule 2 offence? (e) while the accused was at large awaiting sentence for a Schedule 1 or Schedule 2 offence? (f) during the period of a community correction order made in respect of the accused for any Schedule 1 or Schedule 2 offence or while otherwise serving a sentence for any such offence? (g) while released under a parole order made in respect of any Schedule 1 or Schedule 2 offence? Details: FOR THE LEARNER TO DETERMINE	☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No ☐ Yes ☐ No
(19) Has the accused been charged with an offence of conspiracy to commit, incitement to commit or attempting to commit an offence in circumstances set out in Question 18? Details: FOR THE LEARNER TO DETERMINE	☐ Yes ☐ No

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

Step 1 - Show Compelling Reasons Test [s.4C]

A bail decision maker must refuse bail for a person accused of a Schedule 2 offence, or any offence where the accused has a terrorism record, unless satisfied that a compelling reason exists that justifies the grant of bail.

Only a court can grant bail to a person who is already on two counts of bail for indictable offences and has committed any Schedule 2 offence - **[NOTE: A police bail decision maker can still grant bail if the accused is a child, a vulnerable adult or an Aboriginal Person.]**

- | | | |
|--|------------------------------|--|
| (20) Has the accused been charged with an offence/s listed within Schedule 2 of the Bail Act 1977 ? | ☐ Yes | ☐ No |
| Details: FOR THE LEARNER TO DETERMINE | | |
| (21) Has the accused been charged with an offence of conspiracy to commit, incitement to commit or attempting to commit a Schedule 2 offence? [Schedule 2 -Item (31)] | ☐ Yes | ☐ No |
| Details: FOR THE LEARNER TO DETERMINE | | |
| (22) Has the accused been charged with an offence that is neither a Schedule 1 or Schedule 2 offence but the accused has a terrorism record? [s.4AA(4)] | ☐ Yes | ☒ No |
| Details: | | |

Step 2 - All Offences - Unacceptable Risk Test

[NOTE: Step 2 for both Exceptional Circumstances Test (s.4A) and Show Compelling Reason Test (s.4C). Also an All Offences Test (s.4E).]

- | | | |
|--|------------------------------|-----------------------------|
| (23) Is there an unacceptable risk that the accused, if granted bail would:- | | |
| (i) Endanger the safety or welfare of any other person, whether by committing an offence that has that effect or by any other means? | ☐ Yes | ☐ No |
| Details: FOR THE LEARNER TO DETERMINE | | |
| (ii) Interfere with witnesses? | ☐ Yes | ☐ No |
| Details: FOR THE LEARNER TO DETERMINE | | |
| (iii) Obstruct the course of justice? | ☐ Yes | ☐ No |
| Details: FOR THE LEARNER TO DETERMINE | | |
| (iv) Fail to appear on bail? | ☐ Yes | ☐ No |
| Details: FOR THE LEARNER TO DETERMINE | | |

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

VICTIM NOTIFICATION

- | | |
|--|---|
| 1. Victim/s have been notified of the bail/remand application: | ☒ Yes ☐ No |
| 2. Victim/s have requested notification of outcome of application: | ☒ Yes ☐ No |
| 3. There is concern for the victim's safety: | ☒ Yes ☐ No |
| 4. Is the victim protected by an intervention order: | ☒ Yes ☐ No |

Prosecutor to complete in absence of Informant:

If Yes to Q2 or Q3, Informant's OIC notified of outcome by email on (time/date): _____ by (Reg. No.): _____

If Yes to Q3, Informant's OIC notified of outcome by telephone on (time/date): _____ by (Reg. No.): _____

Record of Police Bail Decision

Accused (AMARAN) v Informant (O'Reilly)

BAIL DECISION MAKER

PART B - POWER TO CONSIDER BAIL

Only a court may consider bail if:

- a. The accused has been charged with a Schedule 1 offence; OR
- b. The accused has been charged with a Schedule 2 offence and has a terrorism record; OR
- c. The accused is not a child, vulnerable adult, or Aboriginal person and has been charged with a Schedule 2 offence at the time they committed it they were either on bail, on summons, at large awaiting trial or sentence, on remand, subject to a CCO or a parole order for Schedule 1 or Schedule 2 offence; OR
- d. The accused is not a child, vulnerable adult, or Aboriginal person and has been charged with a Schedule 2 offence and is already on two counts of bail for indictable offences.

If any of the above circumstances apply, present to court as soon as practicable.

A police bail decision maker is prohibited from refusing bail if the accused is charged only with offences against the Summary Offences Act 1966 that are not listed in Schedule 3.

PART C - BAIL HEARING

The bail decision maker is responsible for ensuring that they have discharged their obligations in accordance with the *Bail Act 1977* and VPM - Bail and remand. A bail hearing must not occur before a police bail decision maker if in the circumstances, only a court may consider bail.

As the police bail decision maker, I am satisfied of the following:

(1) The bail test applicable to the accused is				
(i)	Exceptional circumstances	☐ Yes	☐ No	☐ N/A
(ii)	Show compelling reason	☐ Yes	☐ No	☐ N/A
(iii)	Unacceptable risk	☐ Yes	☐ No	☐ N/A
(2) Having considered Part B of this form, I am empowered to consider bail		☐ Yes	☐ No	
• If No, present to court as soon as practicable				
(3) I am satisfied that the accused is charged only with offences against the Summary Offences Act 1966, and those offences are not listed in Schedule 3 [s.4AAA]. For this reason, I am prohibited from refusing bail		☐ Yes	☐ No	☐ N/A
(4) I have taken into account the following matters where required by the <i>Bail Act 1977</i> and VPM - Bail and remand				
(a)	The surrounding circumstances of the accused (refer Part A Questions 2-10) [s.3AAA]	☐ Yes	☐ No	☐ N/A
(b)	Considerations in relation to an Aboriginal person (refer Part A Question 11) [s.3A]	☐ Yes		☐ N/A
(i)	Factors including overrepresentation of Aboriginal persons in the criminal justice system, the need to maintain and support connection to culture and the risk of harm and trauma of being in custody			
(c)	Considerations in relation to children (refer Part A Questions 12-15) [s.3B]	☐ Yes		☐ N/A
(i)	This includes all factors in which evidence is reasonably available or not at the time			
(d)	Family violence risks (refer Part A Question 1) [s.5AAAA]	☐ Yes		☐ N/A
(e)	When considering if the accused is an unacceptable risk, imposing bail conduct conditions on the accused [s.5AAA]	☐ Yes		☐ N/A
(5) I have considered the available evidence and authorise the charges and disposition		☐ Yes	☐ No	☐ N/A
(6) I have checked that the Informant has made appropriate victim notifications		☐ Yes	☐ No	☐ N/A
☐ BAIL GRANTED		☐ BAIL REFUSED		
(7) I have completed the 'Record of Police Bail Decision'		☐ Yes	☐ No	

Name: _____ Rank / Reg. No.: _____

Signature: _____ Date: _____

Record of Police Bail Decision

Accused (AMARAN) v Informant (O'Reilly)

☐ **BAIL GRANTED** [Complete Below & Bail Granted Details]☐ **BAIL REFUSED** [Complete Below & Bail Refused Details]**BAIL GRANTED DETAILS**

- For any Schedule 2 offence you must complete a VP 497 Statement of Reasons for Granting Bail.
- If objection is taken to the amount of bail fixed or conditions of bail you must complete and serve on the accused a VP 467B Statement For Arrested Person who Objects to Amount or Conditions of Bail. Within ordinary court sitting hours bring the arrested person before the court. Outside ordinary court sitting hours call a Bail Justice.

Bailed to court: _____ Date: _____

BAIL REFUSED DETAILS

Date Bail Refused: _____ Time Bail Refused: _____

Reason/s
for Refusing Bail:**Proposed court details**

Court: _____

Court Date: _____ Court Time: _____

The Accused Is a child, vulnerable adult, Aboriginal Person or Person Arrested on an Enforcement Warrant:

- ☐ **Yes** => Accused **MUST** be brought before a Bail Justice as soon as **practicable**.
=> Complete and serve a Form VP 467.

- ☐ **No** => Refer to "All Other Persons" section below.

All other persons:If the Accused **CAN** be brought before the court within 48 Hours from the Date / Time Bail was refused:-

- Police can remand the accused in custody. No Bail Justice is required.
- Police must complete and serve a VP 467A Statement For a Person in Police Custody when Bail is Refused.

If the Accused **CANNOT** be brought before the court within 48 Hours from the Date / Time Bail was refused:-

- The Accused **MUST** be brought before a Bail Justice as soon as practicable.
- Police must complete and serve a VP 467A.

Bail Justice details

Date Bail Justice Called: _____ Time Called: _____

Name: _____ Time Attended: _____

Outcome: ☐ Bail Granted ☐ Bail Refused / Remand

Note: A copy of this "Record of Police Bail Decision" must be filed with the charges.

Preliminary Brief - Remand/Bail Application

Accused (AMARAN) v Informant (O'Reilly)

BAIL HEARING No.1

Heard at court/Other venue: _____ Date: _____

Was bail applied for: ☐ Yes ☐ NoWas the accused legally represented in this bail application: ☐ Yes ☐ No

Magistrate's/Bail Justice name: _____

Prosecutor's/Informant's name: _____

Defence counsel's name (if any): _____

Independent Third Person/Parent/Guardian/Interpreter: _____

REMAND DETAILS (if any):

Remanded to court: _____ Date: _____

Magistrate's reason
for refusing bail: _____**BAIL DETAILS (if any):**

Bailed to court: _____ Date: _____

Conditions of Bail: _____

BAIL HEARING No.2

Heard at court/Other venue: _____ Date: _____

Was bail applied for: ☐ Yes ☐ NoWas the accused legally represented in this bail application: ☐ Yes ☐ No

Magistrate's/Bail Justice name: _____

Prosecutor's/Informant's name: _____

Defence counsel's name (if any): _____

Independent Third Person/Parent/Guardian/Interpreter: _____

REMAND DETAILS (if any):

Remanded to court: _____ Date: _____

Magistrate's reason
for refusing bail: _____**BAIL DETAILS (if any):**

Bailed to court: _____ Date: _____

Conditions of Bail: _____

Preliminary Brief - Statement Made By Informant

Accused (AMARAN) v Informant (O'Reilly)

Accused				
Name	Family Name AMARAN		Given Names Cat	
	Sex F	Date of Birth 19/09/N-33	Prior Convictions Yes	
Informant				
Name	Family Name O'Reilly		Given Names Radar	
	Rank Senior Constable			Reg. No. 12345
	Work Location Melbourne East Police Station			Telephone
Co-Accused				
Name	Family Name		Given Names	Sex
				Date of Birth
Orders / Applications				
Forfeiture / Disposal / Pecuniary Penalty Order				
Forfeiture Order required and form attached		☒ Yes	☐ No	☐ N/A
Application for Pecuniary Penalty Order (S.58 Confiscation Act 1997)		☐ Yes	☐ No	☒ N/A
Witness Costs / Restitution / Compensation				
Witness costs, restitution or compensation sought and form attached		☐ Yes	☐ No	☒ N/A
Forensic Procedures (Crimes Act 1958)				
Application for forensic sample and form attached - S.464ZFB or ZGF [Juvenile Only]		☐ Yes	☐ No	☒ N/A
Application for forensic sample and form attached - S.464ZF(2) or ZF(2AAA)		☐ Yes	☐ No	☒ N/A
Sex Offender Registration				
Proposed action against the accused and form attached		☐ Mandatory	☐ Discretionary	☒ N/A
Contravention of Suspended Sentence				
If found guilty accused contravenes a suspended sentence and charge attached		☐ Yes	☐ No	☒ N/A
Exclusion Order (Section 89DE Sentencing Act 1991)				
Application for Alcohol Exclusion Order sought and form attached		☐ Yes	☐ No	☒ N/A
Exclusion Order (Part 8A LCRA 1998)				
Application for an Exclusion Order sought and form attached		☐ Yes	☐ No	☒ N/A
Motor Vehicle Impound Orders (Road Safety Act 1986)				
Forfeiture order for motor vehicle and form attached - S.84U(1)		☐ Yes	☐ No	☒ N/A
Impoundment / immobilisation order and form attached - S.84U(1)		☐ Yes	☐ No	☒ N/A
Forfeiture order for substituted motor vehicle and form attached - S.84V(1)		☐ Yes	☐ No	☒ N/A
Impoundment / immobilisation order for substituted motor vehicle - S.84U(1)		☐ Yes	☐ No	☒ N/A
Immediate Permit / Licence Ban (Part 6B/6C Road Safety Act 1986)				
Accused permit / licence suspended or disqualified and notice attached (brief copy)		☐ Yes	☐ No	☒ N/A
Date suspension / disqualification commenced				
Does the victim want to provide a victim impact statement		☒ Yes	☐ No	☐ N/A
Victim impact statement attached		☐ Yes	☒ No	☐ N/A
Other (Specify)				

Note: Actual applications / orders are only attached to prosecution copy of the brief

Preliminary Brief - Statement Made By Informant

Accused (AMARAN) v Informant (O'Reilly)

Statement of alleged facts

Description of alleged offence(s) with reference to supporting evidence. Where relevant provide a description of the background and consequences of the alleged offence.

Personal Circumstances

The accused is a 33 year old female. The complainant, Delta Wave, is a 29 year old female.

The accused and complainant have known each other for 10 years. They were in an intimate relationship for 4 years, before recently separating. Their relationship breakdown was a result of the applicant's ongoing alcohol abuse. During their relationship the accused was verbally and physically abusive toward the complainant, particularly when alcohol-affected.

A final family violence intervention order is currently in place, naming the accused as respondent and the complainant as AFM, with conditions of 'Not to commit family violence' and 'Not to attend the complainant's address when alcohol affected'. The order is active and served, having been served on the accused by police on 01/01/N, and is in operation until 01/01/N+2.

Current Incident

Yesterday at 1900 hours the accused attended the complainant's residence at 44 Salisbury Lane, Melbourne. Both parties have consumed an unknown quantity of alcohol together throughout the evening. At approximately 0130 hours today, the parties were in the lounge room together. While the complainant was looking at her phone, the accused asked her who she was texting, to which the complainant did not answer. The accused has become enraged, calling the complainant a "sneaky rat" and an "ungrateful rude b*tch". She accused the complainant of looking for a "better offer", and cheating throughout their relationship.

The complainant attempted to walk away from the accused to give her space and defuse the situation, however the accused grabbed a bottle of vodka from the coffee table. The accused slammed the bottle down on the table, causing the bottle to shatter and break in half. The accused charged at the complainant while brandishing the broken bottle towards the complainant. The accused said "I'll cut you up if you don't tell me what you're doing with her!"

The complainant broke down in fear, curling up into the foetal position in the corner of the room, hoping to protect herself from the accused. It was at this point the accused laughed at the fact the complainant was crying, telling her she was a coward. The accused walked out to the backyard and sat on the porch.

Police arrived at the address at approximately 0200 hours, after receiving numerous calls of a dispute occurring at the address. The complainant was still visibly upset, providing a statement to police and advising this was not the first time the accused had assaulted her.

Police photographed and seized a broken bottle from the porch. A statement was obtained from neighbour, Leif ERIKSON, who called 000.

The applicant was arrested at the scene. When walked to the divisional van she yelled to the complainant "You can't do this to me, you know I can't cope. Look what you're doing to me". She was transported to Melbourne East Police Station. She was lodged in a cell prior to interview, in order to regain sobriety.

Unacceptable Risk

The accused is a 33 year old female who struggles with ongoing alcohol abuse. She is currently residing at 456 Barkly Street, Brunswick, however is suspected to be residing at the complainant's house most nights. Previous family violence incidents between the parties are recorded on LEAP - with the accused listed as the respondent on 6 occasions. On 1 occasion, the complainant is listed as the respondent (no further information is known about these incidents - only that they were non-violent).

Priors

The accused has 1 prior matter for unlawful assault, for which she was sentenced to an adjourned undertaking with a condition to comply with alcohol rehabilitation, effective through until 10/12/N+1. Her compliance with the adjourned undertaking is unconfirmed at this time. The assault was committed against the same complainant and involved pushing her to the ground.

Statement made by accused

Relevant explanations provided by accused including statements of admission, mitigation or remorse (include direct quotes where practicable)

When asked about the assault, the accused replied "I don't really remember, I blacked out."

When asked her reasons for attending the address, the accused stated "I'm allowed to go visit, and plus, she invited me over and started drinking first. She handed me my first drink."

When asked about her reasons for contravening the family violence intervention order, the accused stated "I'm

aware of the order, but she invited me there and gave me a drink so I thought that made it ok for me to be there.
What am I supposed to do, say no?"

Accused (AMARAN) v Informant (O'Reilly)

No.	Name	Evidence	Statement Obtained	Document Attached
1	Business Manager Delta Wave	Complainant and AFM.	Yes	No
2	Leif Erikson	Will give evidence of hearing dispute and calling 000.	Yes	Yes
3	Senior Constable Radar O'Reilly	Will give evidence of attending at the complainant's address and arresting and interviewing the accused.	Yes	Yes

Accused (AMARAN) v Informant (O'Reilly)

No.	Exhibit Description	Produced By	Exhibit Relevance	Police Possession
-----	---------------------	-------------	-------------------	-------------------

1	Broken bottle		Seized by informant from complainant's address.	Yes
2	Record of interview	Senior Constable Radar O'Reilly	Interview conducted with accused at Melbourne East Police Station TODAY.	Yes

Preliminary Brief - Statement Made By Informant

Accused (AMARAN) v Informant (O'Reilly)

Acknowledgment		
I acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.		
Signature	Signature of person making acknowledgment Radar O'Reilly Senior Constable 12345	
Acknowledgment taken and signature witnessed by me at		
	Place	Date
		Time
Before(1):	Name and address in legible writing, typing or stamp	
(1) A person authorised under Section 38 of the Criminal Procedures Act 2009 to witness statements		

CHARGE - SHEET

CDEB / Police Brief copy

FVISA Code: Family Violence

Magistrates' Court Criminal Procedure Rules 2019 Form 1 Rule 13(a)

TO THE ACCUSED

Cat AMARAN

456 Barkly Street, Brunswick VIC 3059

Mobile Phone No.: 0422222222

Email Address: cat.amaran@gmail.com

Aboriginal or Torres Strait Islander person: Identifies as neither

Unsuitable Dates: Nil Unsuitable Dates

Preferred Dates: Nil Preferred Dates

M

F

Co

Date of Birth

☐

☒

☐

19/09/N-33

**You have been charged with an offence against the law.
Read these pages to see what you must do**

MNI / JAID: 1234561

Registration No.

State VIC

Licence No.

State VIC

Details of the charge against you

What is the charge? 1 The accused at Melbourne on TODAY being a person against whom a family violence intervention order was made pursuant to the Family Violence Protection Act, and having been served with a copy of such order or had an explanation of the order given to her in accordance with section 96 (Final Order) of the Act did contravene that order by threatening to assault the affected family member.

[2] Sub-Incident Number:

Offence Code: 524AZ

Offence Literal: Contravene Family Violence Final Intervention Order

Under what law?

☒ State ☒ Act ☐ Other - Specify
☐ C'Vealth ☐ Reg

Act or Regulation No.
Family Violence Protection Act
No.52/2008

Section/Clause (Full Ref.)
123(2)

Type of Offence

☒ **Summary Offence** (You **should** go to Court) ☐ **Indictable Offence** (You **must** go to Court)

Request for Committal Proceeding

☒ No ☐ Yes

Is this an infringement offence?

☒ No ☐ Yes - see below

☐ Enforcement Review

☐ Enforcement Review -special circumstances

If enforcement review, date of service by the Director, Fines Victoria:

☐ Infringements Act 2006 s.40 ☐ Other:

Are there more charges?

☐ No ☒ Yes - see "Continuation of Charges" attached

Informant

Senior Constable Radar O'Reilly 12345

Phone No:

Agency and Address

Melbourne East Police Station 202 Bourke Street, Melbourne VIC. 3000

Email

radar.oreilly@police.vic.gov.au

Fax

Informant Signature

Date

Charge Filed at

Melbourne

Date

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Cat AMARAN		Page No 1	
2 The accused at Melbourne on TODAY did unlawfully assault Delta WAVE.			
[2] Sub-Incident Number:		Offence Code: 129C	
Offence Literal: Unlawful Assault			
☒ State	☒ Act ☐ Other - Specify	Act or Regulation No. Summary Offences Act No.7405/1966	Section/Clause (Full Ref.) 23
☐ C'Vealth	☐ Reg		
☒ Summary Offence (You should go to Court but you must go if you are on bail) ☐ Indictable Offence (You must go to Court)			
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
3 The accused at Melbourne on TODAY did unlawfully assault Delta WAVE with a weapon.			
[2] Sub-Incident Number:		Offence Code: 129BH	
Offence Literal: Assault with Weapon			
☒ State	☒ Act ☐ Other - Specify	Act or Regulation No. Summary Offences Act No.7405/1966	Section/Clause (Full Ref.) 24(2)
☐ C'Vealth	☐ Reg		
☒ Summary Offence (You should go to Court but you must go if you are on bail) ☐ Indictable Offence (You must go to Court)			
Request for Committal Proceeding	☐ No ☐ Yes		
Is this an infringement offence?	☐ No ☐ Yes -see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
Are there more charges?	☐ No ☒ Yes - see Page No. 2		
Informant	Senior Constable Radar O'Reilly 12345		
Agency and Address	Melbourne East Police Station 202 Bourke Street, Melbourne VIC. 3000	Phone	
Informant Signature		Registrar Signature	
Charge filed at		Date	
Follow the instructions as listed for VP Form 401 or 402, depending on the circumstances of use of this continuation of charges. 'Informant Signature' MUST appear on the 'To be filled at Court after service' copy of this form.			
If these Continuation of Charges are laid at a time subsequent to the submission of the original charges, then the following data fields MUST be completed:	MNI / JAID		
	Offender ID		
	Printer ID	R	

CONTINUATION OF CHARGES

CDEB / Police Brief copy

Magistrates' Court Criminal Procedure Rules 2019 Form 2 Rule 13(b)

Person Charged Cat AMARAN		Page No 2	
4 The accused at Melbourne on TODAY did without lawful excuse make a threat to Delta WAVE to inflict serious injury on such person intending that Delta WAVE would fear such threat would be carried out or being reckless as to whether or not Delta WAVE would fear that the said threat would be carried out.			
[2] Sub-Incident Number:		Offence Code: 199C	
Offence Literal: Threat to Inflict Serious Injury			
☒ State	☒ Act ☐ Other - Specify	Act or Regulation No. Crimes Act No.6231/1958	Section/Clause (Full Ref.) 21
☐ C'Vealth	☐ Reg		
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☒ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☒ No ☐ Yes		
Is this an infringement offence?	☒ No ☐ Yes - see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
[2] Sub-Incident Number:		Offence Code:	
Offence Literal:			
☐ State	☐ Act ☐ Other - Specify	Act or Regulation No.	Section/Clause (Full Ref.)
☐ C'Vealth	☐ Reg		
☐ Summary Offence (You should go to Court but you must go if you are on bail)		☐ Indictable Offence (You must go to Court)	
Request for Committal Proceeding	☐ No ☐ Yes		
Is this an infringement offence?	☐ No ☐ Yes -see below		
	☐ Enforcement Review ☐ Enforcement Review -special circumstances		
	☐ Infringements Act 2006 s.40 ☐ Other:		
Are there more charges?	☒ No ☐ Yes		
Informant	Senior Constable Radar O'Reilly 12345		
Agency and Address	Melbourne East Police Station 202 Bourke Street, Melbourne VIC. 3000	Phone	
Informant Signature		Registrar Signature	
Charge filed at		Date	
Follow the instructions as listed for VP Form 401 or 402, depending on the circumstances of use of this continuation of charges. 'Informant Signature' MUST appear on the 'To be filled at Court after service' copy of this form.			
If these Continuation of Charges are laid at a time subsequent to the submission of the original charges, then the following data fields MUST be completed:		MNI / JAID	
		Offender ID	
		Printer ID	R

STATEMENT

Name: Leif Erikson

STATES:

My name is Leif ERIKSON and I reside at 458 Barkly Street Brunswick. I am a neighbour of Delta.

I always hear the two girls next door yelling and screaming at the top of their lungs. It got a bit better, round about 01/01/N, as I think one of them moved out. But even so, there is still a lot of fighting and banging coming from that place.

On N/N/N, at around 0130hrs, I was just about to fall asleep, when I heard a smash from next door. There had been some yelling here and there before that, but at that point I heard a scream and some crying. I'm unsure what the smash noise was, only that it was loud and was followed by crying.

I called police at around 0135hrs, because I could still hear yelling after the smash. I don't want anyone to get hurt, but more importantly I just wanted to go to sleep and for them to be quiet.

At around 0200hrs the police arrived and took this statement.

I had no further involvement with this matter.

.....

(Leif Erikson)

Statement taken and signature witnessed by me

at on at

I hereby acknowledge that this statement is true and correct and I make it in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury.

.....

(Lief Erikson)

Acknowledgment made and signature witnessed by me

at on at



* TRAINING - for training purposes only. References to real people or places is unintentional *

CRIMINAL HISTORY FOR

Justice Accused Id: 1234561

COURT	Name: AMARAN, CAT Dob: 19-09-1990 DATE	Age: 33 DEGREE	Sex: FEMALE CHARGE	COUNT	RESULT
MELBOURNE MAGISTRATES	10/12/N-1		Unlawful Assault	1	Without conviction, adjourned undertaking to be of good behaviour until 10/12/N+1. To comply with alcohol rehabilitation.

**** END OF REPORT ***